

Gangavva Goudappagouda Patil vs Union Of India on 19 January, 2023

Author: M.G.S. Kamal

Bench: M.G.S. Kamal

- 1 -

MSA No. 100149 of 2020

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 19TH DAY OF JANUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE M.G.S. KAMAL

MISCELLANEOUS SECOND APPEAL NO. 100149 OF 2020

BETWEEN:

1. SMT.GANGAVVA GOUDAPPAGOUDA PATIL
AGE 73 YEARS, OCC HOUSEWIFE,
R/O. GANGADHAR COLONY,
SHANTI NAGAR, KESHWAPUR,
HUBBALLI-580023.
2. SRI.GOUDAPPAGOUDA VEERANAGOUDA PATIL
AGE 87 YEARS, OCC HOUSEWIFE,
R/O. GANGDHAR COLONY,
SHANTI NAGAR, KESHWAPUR,
HUBBALLI-580023.

...PETITIONERS

(BY SRI. CHETAN T LIMBIKAI, ADV. FOR A1)

AND:

1. UNION OF INDIA,
R/BY ITS GENERAL MANAGER,
SOUTH WESTERN RAILWAY
R/BY CHIEF WORKS MANAGER, SWR,
HUBBALLI-580031.
2. SMT.JYOTI W/O. SIDDANAGOUDA PATIL
AGE 40 YEARS, OCC HOUSE HOLD WORK,

C/O.RUDRAPPA HUNDEKAR,
HUNDEKAR ONI, BAGALKOT-587101.

3. SMT.GEETA W/O.SIDDANAGOUDA PATIL
AGE 38 YEARS, OCC HOUSEHOLD WORK,
R/O. GANGADHAR NAGAR,

-2-

MSA No. 100149 of 2020

SHANTI NAGAR, KESHWAPUR,
HUBBALLI,
NOW R/O.H.NO.6, SAGAR COLONY,
JANATHA QUARTERS,
C/O.BANDURAO BADACHI,
NEAR KESHWAPUR POLICE STATION,
KUSUGAL ROAD, HUBBALLI-580023.

4. KUMARI KAVYA D/O. SIDDANAGOUDA PATIL
AGE 17 YEARS, OCC STUDENT,
R/O. GANGADHAR NAGAR,
SHANTI NAGAR, KESHWAPUR,
HUBBALLI,
NOW R/O.H.NO.6, SAGAR COLONY,
JANATHA QUARTERS,
C/O.BANDURAO BADACHI,
NEAR KESHWAPUR POLICE STATION,
KUSUGAL ROAD, HUBBALLI-580023
(MINOR REPRESENTED BY HER NATURAL GUARDIAN
MOTHER RESPONDENT NO.3)
5. LIC OF INDIA,
BY ITS MANAGER
BRANCH AT :KALBURGI COMPLEX,
OPPOSITE TO HDMC,
HUBBALLI-580031.

...RESPONDENTS

(BY SRI.M.B.KANAVI, ADV. FOR R1;
SRI.H.R.GUNDAPPA, ADV. FOR R3 & R4;
R4 MINOR R/BY R3;
SRI.RAGHAVENDRA A PUROHIT, ADV. FOR R5;
NOTICE TO R2 SERVED)

THIS MSA IS FILED U/SEC.43 RULE 1 (u) OF CPC., AGAINST
THE JUDGEMENT AND DECREE DTD 31.07.2020 PASSED IN
R.A.NO.132/2016 ON THE FILE OF THE I ADDITIONAL DISTRICT AND
SESSIONS JUDGE, DHARWAD, SITTING AT HUBBALLI, ALLOWING

THE APPEAL FILED AGAINST THE JUDGEMENT AND DECREE DTD
29.02.2016 PASSED IN O.S.NO.227/2011, ON THE FILE OF THE II
ADDITIONAL SENIOR CIVIL JUDGE, HUBBALLI, PARTLY DECREERING
THE SUIT FILED FOR PARTITION AND SEPARATE POSSESSION.

-3-

MSA No. 100149 of 2020

THIS APPEAL COMING ON FOR ORDERS, THIS DAY, THE
COURT DELIVERED THE FOLLOWING:

JUDGMENT

1. Present appeal is filed by the appellants, who are the plaintiffs, aggrieved by the judgment and order dated 31.07.2020 passed in R.A.No.132/2016 clubbed with R.A.No.119/2016, on the file of the I Addl.District and Sessions Judge, Dharwad sitting at Hubballi (hereinafter referred to as 'the First Appellate Court'), in and by which the First Appellate Court while setting aside the judgment and decree dated 29.02.2016 passed in O.S.No.227/2011 on the file of the II Addl.Senior Civil Judge, Hubballi (hereinafter referred to as 'the Trial Court'), allowed R.A.No.132/2016 by remanding the matter back to the Trial Court providing an opportunity to the defendants to file written statement and to contest the matter. Consequent to the allowing of R.A.No.132/2016, the First Appellate Court has dismissed R.A.No.119/2016 without adverting to the merits of the said appeal. It is this order of remand, which is challenged before this Court by the original plaintiffs.

2. The above suit in O.S.No.227/2011 is filed by the appellants/plaintiffs seeking partition and separate possession of 2/4th share in the suit schedule property. It is their case that one Siddanagouda Patil, who was the son of the plaintiffs, was working in South Western Railways, Hubballi-the defendant No.5 in the suit. That the said Siddanagouda Patil suffered from paralysis and died on 24.06.2011 during his service. That the said Siddanagouda Patil was married to defendant No.1 on 16.11.1995. Due to certain irreconcilable differences between the said Siddanagouda and defendant No.1, defendant No.1 left the house in the year 2000. Deceased Siddanagouda Patil and defendant No.1 did not have any children out of their marriage. That the defendant No.1 had filed a petition against the said Siddanagouda Patil in M.C.No.78/2003 on the file of the Senior Civil Judge, Bagalkot under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 and the same was allowed. That during the subsistence of marriage between the said Siddanagouda and defendant No.1, he had contacted second marriage with defendant No.2. That defendant No.2 gave birth to defendant No.3, out of the said marriage. That there were certain complaints filed against defendant No.2 by the plaintiffs, alleging that the defendant No.2 had managed to obtain her name entered as nominee in the records of Life Insurance Policies and also in the service records of Siddanagouda. That taking advantage of her name having been entered as nominee, she was making

claim depriving the entitlement of plaintiffs, who are the parents of the said Siddanagouda. Hence, the suit.

3. Written statement was filed by defendants No.1, 2, 3 and 4. Defendant No.1 in her written statement admitted the marriage and also the dissolution of marriage. It is contented that the petition filed in MC No.78/2003 for divorce was allowed with a direction to the said Siddanagouda Patil to pay Rs.1,250/- per month as maintenance till her lifetime. A counter claim is also made by defendant No.1 in her written statement. That she has filed execution petition for recovery of maintenance amount. That she has not received maintenance amount after the death of said Siddanagouda Patil and that she required enhancement amount of Rs.10,000/- per month and entitled to have charge over the assets of Siddanagouda Patil, against the payment of maintenance.

4. Defendants No.2 and 3 in their written statement contented that defendant No.2 is the legally wedded wife of deceased Siddanagouda Patil and defendant No.3 is their legitimate child. Therefore defendant No.2 and 3 are alone entitled for the assets and benefits of deceased Siddanagouda Patil. Claim of the plaintiffs and defendant No.1 is denied. Hence, sought for dismissal of the suit.

5. Defendant No.4-Life Insurance Company filed written statement denying the paint averments and contented that late Siddanagouda Patil had four policies and had nominated Geeta-the defendant No.2 as his nominee and as per Section 39(11) of the Insurance Act, 1938, 'where a policyholder dies after the maturity of the policy but the proceeds and benefit of his policy has not been made to him because of his death, in such a case, his nominee shall be entitled to the proceeds and benefit of his policy', hence, the payment has to be made to the nominee and that the claim has already been settled on 11.08.2011. Hence, sought for dismissal of the suit

6. The Trial Court based on the pleadings, framed the following issues:

"1. Whether the plaintiffs prove that the marriage of the defendant No.2 with late Siddanagouda is illegal, void ab-initio as contended in para-5 of their plaint?

2. Whether they further prove that after the death of Siddanagouda they and defendant 1 and 3 became the joint owners and in joint possession of suit properties?

3. Whether the defendants No.2 and 3 prove that the suit is bad for non-joinder of necessary parties?

4. Whether they further proves that the marriage between Siddanagouda with defendant No.1 is dissolved by a decree passed in M.C.78/2003 on the file Principal Senior Civil Judge, Bagalkot dated 13.04.2007?

5. Whether they further proves that the court fee paid by the plaintiffs is insufficient?

6. Whether the defendant No.1 proves that she is entitled to have a charge upon estate of her deceased divorced husband on the suit property?

7. Whether the defendants No.2 and 3 proves that the counter claim of defendant No.1 is not maintainable?

8. Whether they further proves that this court has no jurisdiction to entertain the counter claim and it is barred by limitation?

9. Whether the plaintiffs are entitled for the relief claimed in the suit?

10. What order or decree?

Additional issues:

1. Whether the defendant No.1 proves that she is entitled to have charge upon the estate of her deceased divorced husband as contended in the counter claim?

2. Whether the defendant No.1 proves that she is entitled for enhancement of maintenance from Rs.1,250/- to Rs.10,000/- per month from the date of counter claim?"

7. After recording evidence, the Trial Court decreed the suit and held that plaintiff No.1 and defendant No.3 being entitled for ½ (one half) share each. Claim of plaintiff No.2 was rejected and the counter claim of defendant No.1 was partly allowed. Being aggrieved by the same, defendant No.1 filed regular appeal in R.A.No.119/2016 and defendant No.5-Union of India filed R.A.No.132/2016. The First Appellate Court clubbed both the appeals and has taken up R.A.No.132/2016 for disposal and has framed the following points for its consideration:

"1. Whether the defendant No.5 proved that sufficient cause was there for him not to prefer appeal within limitation?

2. Whether the trial Court has failed to follow the principles of natural justice to enable the defendant No.5 to appear and contest the matter and delivered illegal judgment and decree?

3. Whether the trial Court has illegally rejected the claim of defendant No.1 for enhancement of permanent alimony and maintenance from Rs.1,250/- p.m. to Rs.10,000/- p.m.?

4. Whether the judgment and decree of trial Court are illegal or capricious or perverse or against the settled principles and facts of the case?

5. Whether it is necessary to interfere into judgment and decree of trial Court?

6. What order?"

- 10 -

8. The grievance of the Union of India-defendant No.5 who has filed R.A.No.132/2016 is that the summons of the suit were not served, as such it was not in a position to defend/prosecute the suit and as per Rule 75(10A)(ii) of the Railway Services (Pension) Rules- 1993, 'The family pension, wherever admissible to parents, shall be payable to the mother of the deceased railway servant failing which to the father of the deceased railway servant'. Hence, the mother is entitled for service benefit of deceased employee-Siddanagouda Patil. Except this there is no other ground urged by the Union of India- defendant No.5 in the appeal.

9. The First Appellate Court accepting the contentions of defendant No.5-Union of India of non-service of summons and lack of opportunity to put forth its case, allowed the appeal and set aside the entire judgment and decree. Apart from allowing the appeal of the Union of India in R.A.No.132/2016, directed the Trial Court to permit Union of India to file its written statement and

- 11 -

conduct a fresh trial, the First Appellate Court also framed following additional issue to be tried and adjudicated by the Trial Court:

"Whether this Court is having jurisdiction to entertain the suit or counter claim or both in view of Sections 7 and 8 of Family Courts Act read with Section 9 of CPC and directed the Trial Court to adjudicate the matter afresh."

10. It is this order of the First Appellate Court, which is challenged before this Court.

11. Heard the learned counsel for the parties. Law with regard to remanding the matter under Order XLI Rules 23, 23A or Rules 24 & 25, is well settled. It is only on satisfaction of the requirements contemplated thereunder, remand is justified. The impugned order of remand does not satisfy any of the requisites of the said provision. It is equally settled position of law that a party complaining ex-parte decree, has two options, one to file application under Order IX Rule 13 CPC or to file application under Section 96. In the instant case, the

- 12 -

respondent-Union of India opted to file appeal under Section 96 of the CPC, which ought to have been dealt accordingly. Instead, the First Appellate Court appeared to have dealt with the appeal applying provisions of Order IX Rule 13 CPC, which is correct.

12. It is equally well settled that the First Appellate Court being the last Court of facts, has all Trappings of Trial Court to deal with the original suit and more capable of disposing of the matter than resorting to the course of remand.

13. In any case, the only grievance of the Union of India-defendant No.5 is that in terms of 75 of the Railway Services (Pension) Rules-1993, mother is entitled for compensation benefits. Such grievance of the Union of India apparently revolves purely on the provision of law, requiring no factual adjudication in the matter. For these purposes, setting aside entire judgment and decree and directing the Trial Court to conduct re-trial in the

- 13 -

considered opinion of this Court is absolutely un- warranted.

14. That apart, the First Appellate Court without advertting to the appeal filed by defendant No.1 in R.A.No.119/2006, who was aggrieved for non- consideration of her counter claim, dismissed the said appeal merely on the ground that it had remanded R.A.No.132/2016 for fresh consideration. It is in that light, the First Appellate Court framed additional issue and directed the Trial Court to dispose of the matter, adjudicating such additional issue with regard to jurisdiction.

15. Thus, from the factual aspects of the matter and the settled position of law, pertaining to power of remand, the First Appellate Court in the considered view of this Court ought to have adjudicated the matter by itself without remanding the matter for fresh disposal by setting aside the entire judgment and decree of the Trial Court,

- 14 -

when there was no need or necessity for the same. This Court is conscious of the fact that the only grievance raised by the Union of India-defendant No.5 was with regard to Rule 75 of the Rules.

16. For the aforesaid reasons, the following:

ORDER The order passed in R.A.No.132/2016 and R.A.No.119/2016 dated 31.07.2020 is set aside and the appeal is restored. The matters are remitted back to the First Appellate Court, who shall dispose of the matters in accordance with law and also adjudicate the contention being raised by defendant No.5 with regard to entitlement of plaintiff No.1 in view of Rule 75 of the Rules.

With the above observations, appeal is allowed. The order is set aside. The Trial Court shall ensure service of notice to all the parties.

- 15 -

It is made clear that the parties are represented by their learned counsel before this Court and the Court shall issue notice only to defendant No.1 and dispose of the matter as expeditiously as possible i.e., within six months from the date of receipt of certified copy of this order.

sd JUDGE